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APPLICATION UNDER SECTION 479(3), BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

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DRAFT – prepared as a decision-support aid for the Superintendent of the jail. It has no effect until reviewed, completed and signed by the officer named in Section 479(3). Every computed figure below must be verified against the jail's own records before filing.

IN THE COURT OF: _____
Case / Application No.: _____
Name of the person detained: _____
Jail: _____

The applicant, being the Superintendent of the jail named in the heading of this application, where the person named in that heading is detained, submits this application under sub-section (3) of Section 479 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and states as follows:

1. The person named in the heading of this application has been in custody in connection with the case(s) listed in this application since 1 June 2022. As computed on 1 August 2026, the custody undergone is 1523 days, of which 1523 days count toward the period specified in sub-section (1) of Section 479.
2. No offence charged in the case(s) listed in this application carries death or imprisonment for life as one of the punishments specified for it, so the exclusion in the parenthesis to sub-section (1) of Section 479 does not apply.
3. The applicable period is one-half of the maximum period of imprisonment specified for the offence, on completion of which sub-section (1) provides for release by the Court on bail.
4. On 1 December 2025, the custody undergone completed one-half of the maximum period of imprisonment specified for the offence charged, being the period mentioned in sub-section (1) of Section 479 applicable to this person.
5. The case(s) to which this application relates, and the offence(s) charged in them, are listed below with the maximum period of imprisonment specified for each offence. This application has been prepared on the basis that the list is complete and that no other case is pending against this person; the applicant must confirm the list's completeness against court records before filing.

CASE FIR 201/2022, PS Test-Town

Offence: Synthetic offence A

Section: s.901 (synthetic)

Maximum sentence: 7 years

Fraction applied: one-half

Threshold: 42 months

Threshold status: completed on 1 December 2025

Punishment provision, verbatim:

"SYNTHETIC FIXTURE TEXT, not a statute: whoever commits the synthetic offence shall be punished with imprisonment for a term which may extend to 7 years."

Source: SYNTHETIC fixture; no source exists

CUSTODY, AS COMPUTED

Date of arrest: 1 June 2022
Computed as on: 1 August 2026
Custody undergone: 1523 days
Effective custody: 1523 days

STATUTORY BASIS

s.479(3):

"The Superintendent of jail, where the accused person is detained, on completion of one-half or one-third of the period mentioned in sub-section (1), as the case may be, shall forthwith make an application in writing to the Court to proceed under sub-section (1) for the release of such person

on bail."

s.479(1):

"(1) Where a person has, during the period of investigation, inquiry or trial under this Sanhita of an offence under any law (not being an offence for which the punishment of death or life imprisonment has been specified as one of the punishments under that law) undergone detention for a period extending up to one-half of the maximum period of imprisonment specified for that offence under that law, he shall be released by the Court on bail:

Provided that where such person is a first-time offender (who has never been convicted of any offence in the past) he shall be released on bond by the Court, if he has undergone detention for the period extending up to one-third of the maximum period of imprisonment specified for such offence under that law:

Provided further that the Court may, after hearing the Public Prosecutor and for reasons to be recorded by it in writing, order the continued detention of such person for a period longer than one-half of the said period or release him on bail bond instead of his bond:

Provided also that no such person shall in any case be detained during the period of investigation, inquiry or trial for more than the maximum period of imprisonment provided for the said offence under that law.

Explanation.—In computing the period of detention under this section for granting bail, the period of detention passed due to delay in proceeding caused by the accused shall be excluded."

The maximum periods of imprisonment stated in this application are taken from the central enactments as recorded. A State amendment not printed in the stored consolidation cannot be detected by this system; the applicant should confirm against any State amendment applicable in this jurisdiction before filing.

The special enactments checked for their own bail restrictions are those recorded in the system that produced this application; the Supreme Court's Category C list in Satender Kumar Antil is itself non-exhaustive. The applicant should confirm before filing that no other special enactment with its own bail restriction applies to the offence charged.

PRAYER

It is therefore prayed that this Court may proceed under sub-section (1) of Section 479 of the Bharatiya Nagarik Suraksha Sanhita, 2023 for the release of the person named in the heading of this application, as that sub-section provides.

Place: _____

Date: _____

Signature of the applicant: _____

Name: _____

Designation (Superintendent of the jail): _____

Legally reviewed by: _____ Date: _____

This draft was generated from the inputs recorded in the eligibility report bearing the same inputs hash, and can be re-derived against the statute version stamped below.

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